
We Just Learned the Most Embarrassing Omission From Todd Blanche's Interview With an Epstein Accomplice

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In recent weeks, it has become clear that many judges have begun to view some of the lawyers who arrive at court to represent Donald Trump's agenda [as sloppy and untruthful at best and hopelessly conflicted at worst](#). What do you do when America's lawyers seem to be representing the person of the president instead of the interests of the people? [On this week's Amicus podcast](#), Dahlia Lithwick spoke to former District Attorney for Westchester County Mimi Rocah. She previously served as an assistant U.S. attorney and division chief for the Southern District of New York. She is currently an adjunct professor at Fordham School of Law, a CNN contributor, and a writer for both the Contrarian and Cafe. She's at work on a book about those inside and outside the DOJ fighting to uphold its core values. This conversation has been edited and condensed for clarity.

Dahlia Lithwick: What can you tell me about Deputy Attorney General Todd Blanche's "proffer" to Jeffrey Epstein's co-conspirator Ghislaine Maxwell? This was when [Blanche met Maxwell in August](#) for what now looks like a [cozy chat](#), during which Maxwell saw no need to invoke the Fifth. Having now seen all these [emails that have been released in the past couple of weeks from the Epstein estate](#), what does it mean in terms of what Blanche was doing there and why, as I think everybody has now noted, Maxwell was then moved to a [nice, cozy prison and offered all sorts of perks](#). (She even has playtime with a little puppy.) This certainly seems irregular, but I'd love you, as a former federal prosecutor, to explain the precise sources of the hinkiness here.

Mimi Rocah: Blanche's "proffer," as he called it, of Ghislaine Maxwell was not a proffer at all. A proffer is a truth-seeking interview in which the government holds the leverage and says, *We want to get information from you. We need you to be 100 percent truthful. And you want something from us, you want a benefit from us, but we're not going to give it to you until we are convinced, unless and until you are truthful and give us information that we can work with.* And that information is usually used to charge other people, although there's some exceptions to that. It may just be information that they need for various other reasons. Blanche's conversation with Maxwell was so obviously not that on its face, based on the questions he asked and the way he asked them. There was no pressing her. At one point, Blanche asked her about money she had received from Epstein (which was part of the evidence at trial, that she was being paid lots of money to do Epstein's bidding in this sex-trafficking ring). In the proffer, Blanche essentially asked her, and I'm paraphrasing, *Why don't you explain that to me? What's your take on that?* Maxwell responded that those were loans and they were just looking at the bank records and she hadn't been asked what the money was for. Blanche accepted that and kept talking about the government's "allegations." But these were things the government proved at trial, actual proven elements of a crime.

It was beyond jaw-dropping to see the No. 2 person at the DOJ conduct himself this way. I have seen Blanche conduct proffers. He knows how to conduct a proffer, trust me. He absolutely knows how to get at the truth, and he was not trying to here.

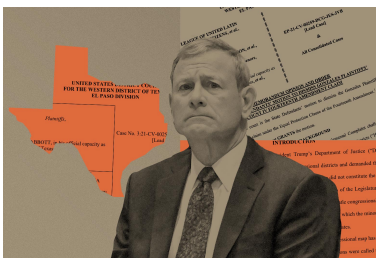
Now we have these emails, and one of the first things I thought was *Wait, why didn't Blanche ask her about these?* For example, the email where Epstein claims that Trump was at the house with a victim for many hours and Maxwell responds by saying "Yeah, I was thinking about that"—what does

that mean? Does that mean she was there when Trump was there? This is Epstein's version, but she seems to be, in the email, kind of corroborating what Epstein is saying about Trump being there. Does it mean Epstein had told her about it? What does that mean? These are the questions looming in the air that, as an investigator, as a prosecutor, you would be dying to ask her, but Blanche did not ask her.

Then Blanche feels the need to publicly tweet back to George Conway, I think because he's got to get it out there somehow; he realizes how bad this looks. So he publicly tweets that the Epstein estate "hid" these emails from the government, which is why he didn't have them before. I have no idea who hid what, but what I do know is that for a prosecutor to go in and supposedly be seeking the truth and not have someone's full emails is irregular. The first thing you do is you get their emails. And if you don't think you have all of them, you know what you do? You don't go in. You just don't. Or you ask them for the email. She has access. They were her emails. And, frankly, they must have had some emails. No one is claiming they never had any emails. He can ask her about one single email. That to me is just further proof of how much this was not a truth-seeking exercise.

But it sure seems as if she did give them something they wanted, because she got a reward. What was the thing she gave them that they wanted? It seems to be the only thing that came out of that "proffer" that they seemed remotely interested in: the statement that Trump did nothing inappropriate. It was a nonsense statement from an evidentiary point of view, but they took it, and [here's your puppy prison](#).

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My goodness, that's depressing. It's a crackup that Blanche references the government as though that's not him; he's on her team, this is not an adversarial proposition, because, really, he's Trump's attorney. Raise your hand if you're not Donald Trump's attorney.

But they are running into some obstacles. You can't do fast, vindictive, vengeful work at the DOJ and not eventually get caught out. And the way they get caught out and called out is by judges, right? We have seen this development in recent weeks where judges around the country, of all ideological backgrounds, are just openly starting to say they just don't believe

DOJ lawyers and are [rejecting the presumption of regularity](#). Our friend Ryan Goodman [has shared astonishing new statistics about judges across the country](#) finding noncompliance in 26 cases, courts mistrusting government information in 60 cases, courts finding arbitrary and capricious government conduct in 68 cases. This is staggering coming out of the Justice Department. But on the one hand, while we exult in this fact-finding and in judges rejecting the DOJ's untruthful claims, on the other, this is all just annihilating decades of earned trust within the department. As somebody who has come up through the department, who reveres it, what do the two sides of that coin look like?

It's unfathomable. I've talked to so many former prosecutors who feel the same way. Integrity is so hard to earn and so easy to lose, and this is not just the integrity of any one person; this is the integrity of the entire department. You knew, when you walked into a courtroom and said "I am so-and-so, representing the government or representing the United States of America," that what you said carried credibility. It didn't mean you could say anything, and it didn't mean you would never be questioned on it, but there was a presumption that you were there to do the right thing and that you would tell the truth. It's an ethical rule to have candor with the court, but it's also simply part of your job, especially if you're a prosecutor.

And we're seeing the consequences in real time. At last week's hearing in Virginia in the James Comey case, the judge called acting U.S. Attorney Lindsey Halligan and [Assistant U.S. Attorney Tyler] Lemons from North Carolina up to the bench and questioned them. It was almost as if they were in the position of defense attorneys. It's usually a defense attorney who has to tap-dance around, not the government. The judge was [asking Halligan's subordinate, Lemons, whether there was a "declination memo" in the Comey case](#) (a memo from other prosecutors declining to prosecute the case). Lemons wouldn't answer the question. He kept dodging and fudging, saying there was something written or that maybe he'd reviewed some written material, but he wouldn't use the words *declination memo*. The judge then said it was a yes-or-no question, and eventually Lemons said yes, a declination memo had existed. The judge further asked if Lemons had been instructed not to tell the court about the memo, and Lemons said yes, by the deputy attorney general. That's Todd Blanche. Apparently, there were gasps in the courtroom, because you don't have to be a prosecutor or a lawyer to understand that somebody instructing a lawyer to not be fully truthful with the court is a really bad thing.

What we've seen is an example of the rushed, sloppy (at best), and dishonest nature of what is happening in the courts. And it is in some small way [already coming back to haunt this DOJ, though we'll see what the consequences exactly are](#). But what will also happen is that the judges will then be targeted and accused of being biased, even though they are absolutely being put in these extraordinary circumstances that they aren't usually in—of having to question and distrust the government. When they have called the government out, it has been with good reason, but we know what the reaction is: "You're just biased judges." In fact, Blanche has said that publicly, and been called out by bar associations for it, [to which he replied "LOL" on Twitter](#).

It's not that no prosecutor or government attorney has ever made a misstatement unintentionally or even intentionally, but if you were even remotely called out by a judge, if a judge started to say they weren't buying this or that something seemed kind of hinky to them? I mean, the shame, the horror! The reaction would be to go and tell a supervisor and then to probably crawl up under your desk and hide and try to figure out a way to salvage it—even if it was a completely innocent mistake. That is just not the reaction that's been happening here. That is part of what is also so unusual about this; when a prosecutor gets called out by a judge about their candor, their reaction should be to fix it. Instead, they seem to be doubling down.

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